

CHAPTER 19.

An Act to make further provision with respect to the Revenues of the Deanery of Manchester.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Notwithstanding anything in section twenty of the Parish of Manchester Division Act, 1850, any income derived from the leasing of certain premises situate in Deansgate, formerly the residence of the dean of Manchester, or in the case of the sale of such premises from the proceeds of sale, shall, after the payment thereof of instalments of principal and interest charged on and payable out of the revenues of the deanery in respect of the amount raised before the passing of this Act for the purpose of the provision of a new decanal residence, be devoted to such purposes connected with the service and ministrations of the cathedral church of Manchester, and not to the personal use or benefit of the dean or any of the canons, as the dean and canons may determine:

Application proceeds of lease or sale of the dean's former residence.

18 & 14 Vic. c. 41.

Provided that nothing in this Act shall affect any agreement for a lease of the said premises subsisting at the passing of this Act, but any such agreement may be carried into effect as if this Act had not been passed.

2. This Act may be cited as the Deanery of Manchester Act, 1906.

Short title.

CHAPTER 20.

An Act to amend the Law relating to Customs and Inland Revenue, and for other purposes connected with Finance.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

SPIRITS.

1.—(1) Where any spirits are used by an authorised manufacturer for making industrial methylated spirits, or are received by any person for use in any art or manufacture under section 1 of the Finance Act, 1902, the like allowance shall be paid

Provisions as to spirits used in art, manufacture, &c., 2 Edw. 7. c.

to the authorised methylator or to the person by whom the spirits are received, as the case may be, in respect of those spirits as is payable on the exportation of plain British spirits, and the Commissioners may by regulations prescribe the time and manner of the payment of the allowance and the proof to be given that the spirits have been or are to be used as aforesaid.

(2) No allowance shall be payable under this section on methylic alcohol, but foreign methylic alcohol may be received and used under section eight of the Finance Act, 1902, without payment of the difference of duty mentioned in that section.

41 Vict.
24.

(3) One-nineteenth shall, as respects methylated spirits other than mineralized methylated spirits, be substituted for one ninth as the minimum proportion of the substance or combination of substances to be mixed with spirits under subsection (3) of section one hundred and twenty-three of the Spirits Act, 1880.

(4) Notwithstanding anything in subsection (2) of section eight of the Finance Act, 1902, an applicant under that section shall not be required to pay any expenses incurred in placing an officer in charge of his premises, except such expenses as in the opinion of the Commissioners, are incurred for special attendances of the officer, made to meet the convenience of the applicant.

(5) Such quantity as the Commissioners may authorise by regulations in each case shall be substituted for fifty gallons in subsection (e) of section one hundred and twenty-six of the Spirits Act, 1880, as the maximum quantity of methylated spirits that may be received or be in the possession of a retailer at any one time; and for one gallon in subsections (e) and (f) of that section as the maximum quantity of methylated spirit which a retailer may receive from another retailer at a time, and as the maximum quantity which a retailer may sell to or for the use of any one person at a time respectively.

Supplemental
Amendments of
the Spirits Act.

2.—(1) Section one hundred and twenty-one of the Spirits Act, 1880 (which forbids the supply of methylated spirits except to the persons mentioned in the section), shall be construed as if, as regards the supply of industrial methylated spirits, a retailer of methylated spirits was not a person excepted under the section.

(2) A retailer of methylated spirits shall not receive or have in his possession any methylated spirits except such as may be authorised by regulations, and if any such retailer contravenes this provision, he shall, for each offence, incur a fine of fifty pounds, and the spirits in respect of which the offence committed shall be forfeited.

(3) Every vessel in which an authorised methylator stores, keeps, or supplies industrial methylated spirits, or mineralized methylated spirits, must be labelled in such a manner as to show that the methylated spirits are industrial or mineralized as the case may be, and if an authorised methylator fails to comply with

his provision, he shall, for each offence, incur a fine of fifty pounds, and the spirits with respect to which the offence is committed shall be forfeited.

(4) In addition to the account required to be kept by the proper officer under subsection (1) of section one hundred and twenty-five of the Spirits Act, 1880, an authorised methylator shall keep distinct accounts in the prescribed forms of any industrial methylated spirits and of any mineralized methylated spirits prepared or received by him and of the sale, use, and delivery thereof, and that section shall apply with reference to each of these accounts and the spirits to which the account relates as it applies with reference to the stock account therein mentioned and to methylated spirits generally.

(5) Section one hundred and thirty of the Spirits Act, 1880, shall apply as if it were an offence under that section without the consent in writing of the Commissioners, or otherwise than in accordance with regulations, to purify or attempt to purify methylated spirits or methylic alcohol, or, after methylated spirits or methylic alcohol have once been used, to recover or attempt to recover the spirit or alcohol by distillation or condensation, or in any other manner.

(6) Subsection (2) of section one hundred and thirty of the Spirits Act, 1880, shall apply as respects any article specified in an order of the Commissioners as it applies with respect to sulphuric ether or chloroform.

3.—(1) The Commissioners may permit the exportation on drawback of tinctures or of spirits of wine, subject to regulations, direct from the premises of a person licensed to rectify or compound spirits, and the like drawbacks and allowances shall be payable in respect of tinctures or spirits of wine so exported as would be payable if the tinctures or spirits of wine were exported from an excise or customs warehouse.

Provision as
exportation
tinctures.

(2) In ascertaining the amount of drawback on any tinctures so exported, the Commissioners may make such addition as they think just in respect of waste.

(3) If any person fails to comply with any regulation made under this section, he shall, in addition to any other liability, incur in respect of each offence a fine of fifty pounds and the article in respect of which the offence is committed shall be forfeited.

(4) This section shall apply as respects the shipment of tinctures as stores as it applies with respect to the exportation of tinctures.

4.—(1) In this Part of this Act—

Interpretati

The expression "industrial methylated spirits" means any methylated spirits (other than mineralized methylated spirits) which are intended for use in any art or manufacture within the United Kingdom.

The expression "mineralized methylated spirits" means methylated spirits which, in addition to being methylated as provided by subsection (3) of section one hundred and twenty-three of the Spirits Act, 1880, have mixed with or dissolved in them such quantity of such kind of mineral naphtha as may for the time being be prescribed by regulations of the Commissioners; and

The expression "tinctures" includes medicinal spirits, flavouring essences, perfumed spirits, and any other articles containing spirits and specified in regulations of the Commissioners; and

The expression "regulations" means regulations made under section one hundred and fifty-nine of the Spirits Act, 1880.

(2) This Part of this Act shall be construed with the Spirits Act, 1880.

PART II.

CUSTOMS AND EXCISE.

proceedings in
case of offences
relating to
saccharin.
& 40 Vict.
36.

5. Section two hundred and thirty-three of the Customs Consolidation Act, 1876 (which relates to the power of justice to proceed summarily in the case of certain offences against the Customs Acts and the limitations on that power), shall, as amended or affected by any other Act, apply to saccharin as it applies to spirits, with the substitution of pounds weight for gallons.

power to grant
licences re-
specting restric-
tion on impor-
tation of
tobacco in
ships under
20 tons.
& 40 Vict.
36.

6. The Commissioners of Customs may grant a licence in respect of any ship of less than one hundred and twenty tons burden, relaxing as respects that ship the provisions of section forty-two of the Customs Consolidation Act, 1876, which forbids the importation and bringing into the United Kingdom of tobacco, cigars, cigarillos, or cigarettes, and snuff in such a ship, and may attach to the licence such conditions as they think fit to impose, and the prohibition shall not extend in respect of any ship so licensed so long as the licence continues, and as long as the conditions (if any) attached to the licence are complied with.

regulation as
to manufacture
of British
wines.

7.—(1) There shall, as from the sixth day of July nineteen hundred and six, be charged, levied, and paid the following duty of Excise:—

	£	s.	d.
On a licence to be taken out annually by a manufacturer for sale of British wines or sweets or made wines authorising manufacture only -	-	-	1 0 0

(2) The Commissioners of Inland Revenue may make regulations prohibiting the manufacture for sale of British wines

sweets, or made wines, except by persons holding a licence and having made entry for the purpose, and for fixing the date of the expiration of the licence, and may by those regulations apply any enactments relating to brewers of beer, to manufacturers or sale of British wines, or sweets, or made wines; and if any person acts in contravention of or fails to comply with any of those regulations, the article in respect of which the offence is committed shall be forfeited, and the person committing the offence shall be liable in respect of each offence to an excise penalty of fifty pounds.

8. The word "by" shall be substituted for the word "without" in subsection (2) of section five of the Finance Act, 1902 (which relates to the allowance on spirits). Amendment
2 Edw. 7. c.
5.

PART III.

MISCELLANEOUS.

9. A uniform duty of ten shillings shall be substituted for the duties chargeable under the Stamp Act, 1891, on an AWARD in England or Ireland, and on an AWARD or DECREE ARBITRAL in Scotland, and specified under that heading in the First Schedule to that Act. Stamp duty
awards.
54 & 55 Vic.
c. 20.

10.—(1) The period during which the power of the Treasury, under section six of the Treasury Bills Act, 1877, to raise money by the issue of Treasury bills for the purpose of paying off any such bills, may be exercised, shall be extended so as to include not only the financial year in which the bills are or are about to be paid off, but also a period of three months after the expiration of that financial year. Treasury bill
40 & 41 Vic.
c. 2.

(2) The amount payable to the Bank of England under section three of the Bank Act, 1892, for the management in every financial year of Treasury bills shall be calculated at the rate of two hundred pounds for every million pounds of the maximum amount of bills outstanding at any one time during the financial year. 55 & 56 Vic.
c. 48.

11. The provisions of section nine of the Finance Act, 1904, shall apply in relation to life insurances or contracts for deferred annuities effected in or with any insurance company lawfully carrying on business in Great Britain or Ireland, and accordingly such section shall be read and construed as though the words "or lawfully carrying on business in Great Britain or Ireland" were inserted therein after the words "British possession." Extension of
provisions of
4 Edw. 7. c.
5. 9. as to
relief from
income tax
premiums on
insurances.

12. Section forty-three of the Exchequer Court (Scotland) Act, 1856 (which precludes a defendant, and the husband or wife of a defendant, in any cause instituted under that Act relating to the Customs or Inland Revenue from giving evidence), is hereby repealed. Repeal of
19 & 20 Vic.
c. 50. s. 43.

immediate
ent and
ort title.

13.—(1) This Act shall come into operation, save as otherwise expressly provided, on the first day of October nineteen hundred and six.

(2) This Act may be cited as the Revenue Act, 1906.

CHAPTER 21.

An Act to amend the Ground Game Act, 1880.

[4th August 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

ort title
and interpre-
tion.

1. This Act may be cited as the Ground Game (Amendment) Act, 1906; and the expressions "occupier" and "ground game" as used in this Act shall have the same meaning as they have in the Ground Game Act, 1880.

& 14 Vict.
47

extension of
right of occu-
pation of moor-
lands, &c. to
all ground
game.

2. Notwithstanding anything in section one, subsection (2) of the Ground Game Act, 1880, contained, the occupier of land to which that subsection applies shall, without prejudice to his existing rights under that Act, be entitled, between the first day of September and the tenth day of December, both inclusive, in any and every year, to exercise the right of killing and taking ground game by the said Act conferred otherwise than by the use of firearms.

agreements
between oc-
cupiers and
owners of
moorlands,

3. Section three of the Ground Game Act, 1880, shall not apply to prevent the occupier of lands to which section one, subsection (3), of that Act applies, and the owner of such land or other persons having a right to take and kill game thereon from making and enforcing agreements for the joint exercise, or the exercise for their joint benefit, of the right to kill and take ground game between the first day of September and the tenth day of December, both inclusive, in any or every year.

immediate-
ent of Act.

4. This Act shall come into operation on the first day of April nineteen hundred and seven.

CHAPTER 22.

An Act to facilitate the transmission by Post of Books and Papers impressed for the use of the Blind.

[4th August 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: